



CHAPTER xv.

An Act to extend the times limited by the Metropolitan Electric Tramways Act 1911 and the Metropolitan Electric Tramways (Railless Traction) Act 1913 for the exercise of certain powers by the Metropolitan Electric Tramways Limited and the Middlesex County Council and for other purposes. A.D. 1916.
[19th July 1916.]

WHEREAS the Metropolitan Electric Tramways Limited (in this Act referred to as “the Company”) are the owners or lessees of certain tramways in the counties of London and Middlesex and are the lessees of certain light railways in the counties of Middlesex and Hertford:

And whereas nearly the whole of the system operated by the Company in the county of Middlesex has been constructed by and belongs to the Middlesex County Council (in this Act called “the Middlesex Council”) and is operated by the Company under agreements made between that Council and the Company:

And whereas by the Metropolitan Electric Tramways Act 1911 the Company were (inter alia) authorised to construct certain tramways including a tramway therein described as Tramway No. 5 and to make certain street widenings in the county of Middlesex more particularly described in section 27 of that Act:

And whereas by section 44 of the said Act of 1911 it was (inter alia) provided that the Company on receiving not less than three months’ notice in writing from the Middlesex Council should sell and transfer to that Council any powers vested in the Company under that Act in respect of all or any of the street widenings in the county of Middlesex thereby authorised:

A.D. 1916.

And whereas in pursuance of the said last mentioned provision in that behalf the Company by a deed dated the tenth day of August one thousand nine hundred and fourteen transferred to the Middlesex Council the said powers of the Company under the said Act of 1911 in respect of the said street widenings in Middlesex described in the said section 27 :

And whereas the Middlesex Council have carried out many of the said street widenings and have served notices to treat in respect of all the interests in the lands required by them for the purposes of carrying out the remainder of the said street widenings :

And whereas in the circumstances of the present war and the curtailment of expenditure by public bodies arising in consequence thereof it is expedient that the Middlesex Council should be temporarily relieved from any liability to proceed or to be compelled to proceed to or in the acquisition of such lands or any interests therein :

And whereas by the said Act of 1911 the Company and the Essex County Council were empowered to construct a new bridge over the Old River Lee in the parish of Tottenham in the county of Middlesex and the parish of Walthamstow in the county of Essex with (inter alia) an approach thereto leading from Ferry Lane in the said parish of Tottenham and to remove the old bridge over the said river then existing close to the site of the said new bridge :

And whereas by section 7 of the said Act of 1911 the Company were authorised so soon as the new bridge had been constructed and a new road authorised by the Tottenham Walthamstow Light Railways Order 1906 and forming an access to the said new bridge had been made to stop up and extinguish all rights of way over (inter alia) so much of Ferry Lane in the said parish of Tottenham as lay between a point in that lane forty-two yards or thereabouts from the said existing bridge and the north-western end of such bridge and to appropriate and use for the purposes of their undertaking the site of the said portion of Ferry Lane so to be stopped up as aforesaid :

And whereas the said new bridge has been constructed and the said new road has been made and the Company have stopped up and extinguished all rights of way over the said

portion of Ferry Lane and have appropriated the site thereof as authorised by the said Act of 1911: A.D. 1916.

And whereas it is expedient that the Company should be empowered to convey the fee simple of the site of the said portion of Ferry Lane so appropriated by them as aforesaid or any parts of such site to the Tottenham Urban District Council:

And whereas by the Metropolitan Electric Tramways (Railless Traction) Act 1913 the Company were authorised to erect trolley vehicle equipment and to work and use trolley vehicles upon certain routes specified in that Act in the urban districts of Wood Green and Tottenham in the said county of Middlesex:

And whereas by the said Act of 1913 the powers for the completion of such trolley vehicle equipment are limited to a period of three years from the fifteenth day of August one thousand nine hundred and thirteen:

* And whereas by section 20 of the said Act of 1913 provision was made that the Company should not commence to erect any such trolley vehicle equipment in the said urban district of Tottenham unless they had within eighteen months from the passing of the said Act given notice to the Tottenham Urban District Council that they intended to execute certain works in the said section mentioned and it was by the said section further provided that the Company should within twelve months from the giving of any such notice complete the said works and that before they commenced to erect any such trolley vehicle equipment they should remove the centre poles on the tramways throughout the said urban district and place in positions at the side of the said road to be reasonably approved by the engineer of the said Council the poles to be substituted therefor and should refix to such substituted poles the existing arc lamps making all necessary connections of cables and wires for lighting such lamps:

And whereas the said notice has not been given:

And whereas the Company have removed the said centre poles and placed substituted poles at the sides of the road and refixed the said arc lamps and made such cable and wire connections as aforesaid as required by the said section:

And whereas by section 34 of the said Act of 1913 it was provided that the Company on receiving not less than three

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A.D. 1916. — months' notice from the Middlesex Council (which notice might expire at any time before the expiration of eighteen months from the passing of the said Act) requiring them so to do should sell and transfer to the Middlesex Council and that the Middlesex Council might purchase and acquire the powers conferred on the Company by the said Act and exerciseable in the county of Middlesex :

And whereas by section 35 of the said Act of 1913 it was provided that in the event of the transfer to the Middlesex Council of any of the said powers of the Company the Middlesex Council might borrow for the purposes of the exercise of any powers so transferred of which the expense is properly chargeable to capital such sum as might be required not exceeding five thousand pounds and such further sums as might from time to time be authorised by the Board of Trade and further provisions were made by the said Act with reference to the borrowing powers thereby conferred on the Middlesex Council :

And whereas negotiations ensued between the Company and the Middlesex Council with respect to the rights powers and obligations of the Company and the rights and powers of the said Council with reference to the matters aforesaid but such negotiations were interrupted by the outbreak of the present war and by the necessary curtailment of expenditure by public bodies which was enforced in consequence thereof :

And whereas it is expedient that the time limited by the said Act of 1911 for the completion of the said tramway and the times limited by the said Act of 1913 for the completion of the said trolley vehicle equipment and for the exercise of the powers conferred by the said Act of 1913 upon the Company and the Middlesex Council should be extended as provided by this Act and that such other provision should be made as is in this Act hereinafter contained :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Metropolitan Electric Tramways Act 1916. A.D. 1916.
Short title.

2. In this Act—

“The Company” means the Metropolitan Electric Tramways Limited;

“The Middlesex Council” means the Middlesex County Council;

“The Tottenham Council” means the Tottenham Urban District Council;

“The Act of 1905” means the Metropolitan Electric Tramways Act 1905;

“The Act of 1911” means the Metropolitan Electric Tramways Act 1911; and

“The Act of 1913” means the Metropolitan Electric Tramways (Railless Traction) Act 1913.

Interpretation.

3. The powers granted by the Act of 1905 as extended by the Act of 1913 for the compulsory purchase of the lands by the Act of 1905 authorised to be acquired are hereby extended and may be exercised during a period of three years after the termination of the present war and on the expiration of that period those powers shall cease. Extension of time for purchase of lands under Act of 1905.

4. The period limited by the Act of 1911 for the construction of Tramway No. 5 authorised by that Act is hereby extended and may be exercised by the Company for a period of three years after the termination of the present war and sections 21 and 22 of the Act of 1911 shall be read and construed as if the period limited by this Act for the completion of the said tramway had been the period limited by the Act of 1911 for the completion of that tramway. Extension of time for construction of Tramway No. 5 authorised by Act of 1911.

If the said tramway be not completed within the period by this Act limited for the completion thereof then on the expiration of that period the powers for making and completing the same or otherwise relating thereto shall cease except as to so much thereof as shall then be completed.

5.—(1) Until the expiration of a period of eighteen months after the termination of the present war no action shall be taken or brought against the Middlesex Council in respect of or consequent on and that Council shall not be liable to take any Temporary abeyance of certain notices to treat.

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A.D. 1916. action or proceedings in pursuance of or consequent on the service by that Council upon any person of any notice to treat for the purchase or acquisition of any of the lands referred to in section 27 of the Act of 1911 or of any interest in any such lands.

(2) If any person having an interest in any such lands has previously to the thirtieth day of November one thousand nine hundred and fifteen altered his position in consequence of any such notice to treat having been served upon him and has thereby sustained damage or incurred expense which he would not have sustained or incurred if the notice to treat had not been served the tribunal to whom any question of compensation or disputed purchase money in respect of such interest may be referred may take such damage or expense into consideration when assessing such compensation or purchase money. Provided that no person shall claim the benefit of this subsection unless within one month after the passing of this Act he shall have given notice in writing to the Middlesex Council of the nature of the damage or expense in respect of which such claim is made.

Extension of
time for com-
pletion of trol-
ley vehicle
equipment
authorised by
Act of 1913.

6. The powers granted by the Act of 1913 for the completion of the trolley vehicle equipment thereby authorised are hereby extended and may be exercised during a period of three years after the termination of the present war and on the expiration of that period those powers shall cease.

Amendment
of provisions
for protec-
tion of
Tottenham
Council.

7.—(1) Subsection (1) of section 20 (For protection of Tottenham Urban District Council) of the Act of 1913 shall be read and have effect as if the following words were omitted therefrom and those words are hereby repealed viz. “unless they
“ shall within eighteen months from the passing of this Act
“ have given notice in writing to the Council that they intend
“ to execute the works mentioned in this subsection nor”.

(2) The Company shall not commence to erect any trolley vehicle equipment under the powers of the Act of 1913 or of this Act in the urban district of Tottenham unless they shall have given notice in writing to the Tottenham Council that they intend to execute the works mentioned in subsection (1) of the said section 20 and such notice shall not be given later than eighteen months after the termination of the present war or such later date as may be agreed in writing between the

Company and the Tottenham Council and any such agreement may contain such terms and conditions as may be agreed between the Company and the Tottenham Council. A.D. 1916.

(3) Subsection (2) of the said section 20 shall be read and have effect as if the notice to be given under subsection (2) of this section were therein referred to instead of the notice to be given under subsection (1) of that section.

8. Subsection (1) of section 34 (For protection of Middlesex Council) of the Act of 1913 shall be read and have effect as if the words "within eighteen months after the termination of the present war" had been substituted therein for the words "within eighteen months from the passing of this Act." Amendment of section 34 of Act of 1913.

9. Section 36 of the Act of 1913 shall be read and have effect as if for the purposes of that section such date as the Middlesex Council may prescribe not being later than two years after the fifteenth day of August next after the termination of the present war were the prescribed time within which the first instalment of principal or the first payment to a sinking fund is to be made by the Middlesex Council in respect of moneys borrowed by that Council under the powers of the Act of 1913 (if such moneys are paid off by instalments of principal or principal and interest or payments to a sinking fund) instead of the date specified in subsection (3) of section 51 of the Act of 1911 as applied by the said section 36. Amendment of section 36 of Act of 1913.

10. The Company may convey to the Tottenham Council and that Council may acquire and hold the fee simple of the whole or any part of the site of the portion of Ferry Lane which the Company were by section 7 of the Act of 1911 authorised to appropriate and use for the purposes of their undertaking Provided always that nothing in this section shall take away any rights of the Metropolitan Water Board under subsection (3) of section 34 of the Act of 1911. Sale of certain lands to Tottenham Council.

11. Notwithstanding anything contained in this Act the Company shall not raise or borrow any money (other than money required for paying the costs and expenses of this Act as hereinafter defined) nor shall the Middlesex Council borrow any money (other than as aforesaid) for any purpose of this Act or for the exercise of any power the time for the exercise whereof is extended by this Act during the continuance of the Restriction on exercise of borrowing powers.

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A.D. 1916. — present war and twelve months thereafter unless the consent of the Treasury has been previously obtained by the Company or the Middlesex Council as the case may be.

Copy of Act
to be regis-
tered.

12. The Company shall deliver to the registrar of joint stock companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

Provision
as to general
Tramway
Acts.

13. Nothing in this Act contained shall exempt the Company or their tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates and charges authorised to be taken by the Company.

Costs of Act.

14. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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